

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 26-08

EALYTEX GLOBAL INC.

v.

COSCO SHIPPING LINES CO., LTD.

JOINT MOTION TO STAY DISCOVERY

Complainant Ealytex Global Inc. (“EGI” or “Complainant”) and Respondent COSCO Shipping Lines Co., Ltd. (“COSCO” or “Respondent” and, together with Complainant, the “Parties”), by their undersigned counsel, jointly move pursuant to 46 C.F.R. § 502.69(a) for an order staying all discovery deadlines in this proceeding for thirty (30) calendar days in light of Respondent's pending Motion for Partial Summary Judgment (the “Motion”) and the refunds/credits described below. In support of this joint motion, the Parties state as follows.

Complainant filed its Verified Complaint on May 19, 2026, and Respondent served its Verified Answer on July 6, 2026. Under the current schedule, discovery closes on December 3, 2026. *See* 46 C.F.R. § 502.141(g). Complainant served its First Set of Interrogatories and Requests for Production of Documents on Respondent on August 3, 2026, with responses due September 2, 2026, and Respondent served its First Set of Interrogatories and Requests for Production of Documents on Complainant on August 4, 2026, with responses due September 3, 2026. Respondent's Motion is now fully briefed: Complainant served its Response in Opposition on July 27, 2026, and Respondent served its Reply on August 3, 2026.

As set forth in Respondent's Reply, COSCO has waived the charges on all 17 containers at issue in this proceeding and is processing the corresponding refunds/credits to the parties that paid the charges, which COSCO expects to implement shortly. One administrative step remains as to

the amounts paid on behalf of Never Ending Express, Inc. (“NEEI”): before releasing those funds, COSCO must confirm with Columbia Container Lines USA (“Columbia Container”) – the entity that remitted payment on NEEI's behalf – that the refund may be directed to NEEI rather than to Columbia Container. COSCO has contacted Columbia Container and is awaiting its response.

Good cause supports a stay. If the refunds/credits are implemented as expected, this proceeding may be resolved in its entirety, and the time and expense of preparing responses and document productions to the Parties' pending discovery requests over the next thirty days would be wasted. A short stay will conserve the resources of the Parties and of the Commission while the refunds/credits are completed and documented. Because discovery does not close until December 3, 2026, the requested stay will not prejudice the schedule in this proceeding, and the Parties will propose any needed adjustments promptly upon the stay's termination.

Accordingly, the Parties respectfully request that the Presiding Officer enter an order: (a) staying all discovery deadlines in this proceeding for thirty (30) calendar days, such that each pending deadline – including the Parties' respective deadlines to respond to the discovery requests served on August 3 and August 4, 2026 – is extended by thirty (30) calendar days; and (b) directing the Parties to file, on or before the expiration of the stay (or within seven days after the Presiding Officer's ruling on the Motion or Respondent's filing of documentation confirming that the refunds/credits have been implemented, whichever occurs first), a joint status report proposing next steps, including any revised discovery schedule or an appropriate disposition of the proceeding. The requested stay is without prejudice to any Party's claims, defenses, or discovery rights, and all Parties reserve all positions.

Dated: August 5, 2026

Respectfully submitted,

Nicholas Webb

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**ATTORNEYS FOR COMPLAINANT,
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CERTIFICATE OF SERVICE

I certify that on this 5th day of August, 2026, a true and correct copy of the foregoing Joint Motion to Stay Discovery was served by electronic mail on all counsel of record in accordance with 46 C.F.R. Part 502 as follows:

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